

TENTATIVE RULINGS

FOR: August 25, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBIla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Ian James Stornetta

21PR000082

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on August 25, 2028, at 8:30 a.m. in Dept. A. The Court

Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Octavio Hernandez Espinoza

22PR000222

REVIEW HEARING

APPEARANCE REQUIRED

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Estate of Peter Francis Rieder

24PR000068

STATUS CONFERENCE RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. There is no new Status Report on file. Petitioner is therefore directed to appear and update the Court on the status of the case.

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Estate of John Daniel McDonald

24PR000206

AMENDED FIRST AND FINAL REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF STATUTORY COMPENSATION TO ADMINISTRATOR AND ATTORNEYS AND FOR FINAL DISTRIBUTION AND ORDER TO VACATE JULY 1, 2026 ORDER

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The July 1, 2026 order is VACATED.

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In the Matter of The Hasty Family Trust

25PR000242

VERIFIED AMENDED PETITION CONCERNING INTERNAL AFFAIRS OF TRUST (filed 8/11/26)

APPEARANCE REQUIRED.

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Estate of Aura R. Vollert

26PR000158

PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED. Richard S. Thomas is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on August 25, 2027, at 8:30 a.m. in Dept. A. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Shirley Jo Kilgore v. Piner’s Nursing Home

26CV001142

PLAINTIFF’S MOTION TO COMPEL FURTHER RESPONSES TO WRITTEN DISCOVERY, SET ONE; REQUEST FOR SANCTIONS

TENTATIVE RULING: The requests for orders compelling further discovery responses are MOOT. The request for an award of monetary sanctions is DENIED.

Plaintiff Shirley Jo Kilgore, by and through her Guardian ad Litem Daniel P. McQueeney, moves, pursuant to Code of Civil Procedure sections 2023.010, 2023.030, 2030.300, 2031.310, 2030.290, subdivision (b), 2033.280 subdivisions (b) and (c), and 2033.290 for an order compelling Defendant Piner’s Nursing Home, Inc. (Piner’s) to serve verified, code-compliant further responses, without objection, to: (1) Special Interrogatories, Set One, Nos. 1 through 49; (2) Requests for Production of Documents, Set One, Nos. 1 through 60; and (3) Requests for Admission, Set One, Nos. 1 through 5 and 11 through 46. Ms. Kilgore also moves to compel Piner’s: (4) to produce documents responsive to the subject Requests for Production; (5) to serve *verified* responses to Form Interrogatories, Set One; (6) to serve verified, code-compliant responses without objection to Requests for Admission, Set One, Nos. 6 through 10, or, in the alternative, an order deeming admitted the truth of the matters specified in those requests. Finally, Ms. Kilgore moves for an award of monetary sanctions against Piner’s and its counsel of record, jointly and severally, in the amount of \$10,860.00.

Piner’s presents evidence that, on August 10, 2026, the day the instant Motion was filed, Piner’s produced further responses to each of the subject sets of discovery, and produced a verification for each on August 12, 2026. (See Declaration of Sean Worsey at ¶¶ 23-26.) These responses contain substantive answers to most, if not all, of the subject discovery requests. (See *id.* at Exh. A.) Piner’s also presents evidence that, on August 11, 2026, it produced over 3,000 documents in response to the Requests for Production.

Ms. Kilgore observes that the Opposition was served one day later than the deadline set by the Court. (See Reply in Support of Plaintiff’s Motion at 2:1-6.) Ms. Kilgore does not, however, assert that she has suffered any prejudice as a result of that delay. Moreover, Ms. Kilgore addresses the opposition on its merits through the Reply. The Court, therefore, declines Ms. Kilgore’s invitation to disregard the Opposition.

While the mere service of responses following a motion to compel does not necessarily render the motion moot (see, *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 406 [held: trial court did not abuse its discretion in ruling on a motion to compel responses *pursuant to* 2030.290 where responding party served responses *after* filing of motion]), the Court finds that Piner's service of *substantive* answers and a significant volume of documents renders each of Ms. Kilgore's requests, save that for monetary sanctions, MOOT.

The Court acknowledges Ms. Kilgore's assertions that certain of the answers set forth in the supplemental responses are deficient for various reasons, and that no documents responsive to certain Requests for Production have been produced. (See Reply at 2:8-5:5.) The adequacy of these answers is not formally before the Court on the instant Motion; Considering these issues would deprive Piner's of due process in the form of an opportunity to respond. The parties are *urged* to meet and confer in good faith to resolve these remaining disputes.

The Court further finds that imposition of monetary sanctions, under the circumstances, would be unjust. Ms. Kilgore served a substantial number of discovery requests together. While Piner's did not produce responses by the deadlines set by the Civil Discovery Act, the Court finds that it did proceed with diligence to collect the information and documents, and prepare and serve responses. Moreover, the Court finds that Piner's counsel was communicative with Ms. Kilgore's counsel continuously through the process.

Trial preference necessarily increases the time pressures associated with litigation. In the context of these pressures, the Court acknowledges Ms. Kilgore's need to bring the instant motion as a hedge against the possibility that Piner's was not diligently working to produce responses and documents as counsel was representing. However, in light of the fact that Piner's was diligently working towards that production, the Court finds that an award of monetary sanctions would be unjust.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

In the Matter of Daniel M. Lennox Special Needs Trust

18PR000271

PETITION FOR APPROVAL OF NINTH ACCOUNT AND REPORT OF TRUSTEE AND
APPROVAL OF TRUSTEE'S FEES

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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Estate of Ronald Edward Gregg

25PR000123

STATUS HEARING RE: FINAL DISTRIBUTION (Prob. Code, § 16600)

APPEARANCE REQUIRED. Pursuant to Probate Code section 12200, a personal representative is required to either petition for an order for final distribution of the estate or make a report of status of administration not later than one year after the date of issuance of letters. There is no petition for final distribution or status report on file. Appearance is required to show the condition of the estate, the reasons why the estate cannot be distributed and closed, and an estimate of time needed to close administration of the estate. (Prob. Code, § 12202, subd. (a).)

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Estate of Roy F Clark

25PR000263

FIRST AND FINAL REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF COMPENSATION FOR ORDINARY SERVICES, AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The December 02, 2026, Status Hearing Re: Final Distribution is therefore VACATED.

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**In The Matter of The Marjorie L Watson 2014
Revocable Living Trust**

26PR000029

FIRST ACCOUNT AND REPORT OF TRUSTEE

APPEARANCE REQUIRED. Petitioner, Objector, and any other “interested person” who wishes to “request time for filing a response to the petition, for discovery proceedings, or for other preparation for the hearing” shall appear prepared to discuss whether any additional opposition is anticipated, whether the parties intend to submit on verified pleadings and affidavits (see *Evangelho v. Presoto* (1998) 67 Cal.App.4th 615, 620), whether any discovery or other pre-hearing practice is anticipated, and whether the parties are willing to participate in alternative dispute resolution proceedings. (Prob. Code, § 852 [mandating that the court “shall grant a continuance for a reasonable time” where any interested person appears at the hearing to request an extension of time].)

Should any party desire an evidentiary hearing, the parties shall be prepared to provide the Court with an estimate for the length of the hearing, and to set the hearing on the Court’s calendar.

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PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED. Michael Torr is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on August 25, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

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In The Matter of Fred A. Silva Bypass Trust

26PR000161

PETITION FOR AN ORDER CONFIRMING SUCCESSOR TRUSTEE OR,
ALTERNATIVELY, APPOINTING SUCCESSOR TRUSTEE

TENTATIVE RULING: The petition is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Maudie Pollastrini v. Auberge Resorts, LLC et al

24CV001401

[1] DEFENDANT AUBERGE RESORTS, LLC’S MOTION TO COMPEL
ARBITRATION

TENTATIVE RULING: The motion is CONTINUED to September 9, 2026, at 8:30 a.m. in Dept. B.

Defendant Auberge Resorts LLC ("Auberge") moves, the Court for an Order compelling arbitration of the claims filed by Plaintiff Maudie Pollastrini ("Plaintiff").

[2] DEFENDANT’S DEMURRER TO PLAINTIFF’S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The motion is CONTINUED to September 9, 2026, at 8:30 a.m. in Dept. B.

Defendant Auberge Resorts LLC ("Auberge") demur, pursuant to California Code of Civil procedure section § 430.10, to Plaintiff Maudie Pollastrini's ("Plaintiff") First Amended Complaint.

[3] DEFENDANT’S MOTION TO STAY PLAINTIFF’S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The motion is CONTINUED to September 9, 2026, at 8:30 a.m. in Dept. B.

Defendant Auberge Resorts LLC ("Auberge") moves, for an order staying the case pending resolution of the arbitration in the above-entitled action filed by Plaintiff Maudie Pollastrini ("Plaintiff").

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Nai Saechao v. Wal-Mart Associates, Inc

26CV001131

[1] DEFENDANT’S DEMURRER TO PLAINTIFF’S COMPLAINT

[2] DEFENDANTS’ MOTION TO STRIKE PORTIONS OF PLAINTIFF’S COMPLAINT

TENTATIVE RULING: Both matters are CONTINUED to September 23, 2026 at 8:30 a.m. in Dept. B to allow the moving party to provide a Local Rule compliant notice. The moving party failed to include, in either notices of the demurrer or motion, proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. The moving party is directed to (1) prepare an Amended Notice for both matters, which contains the continued hearing date and notice of the Court’s tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice to all other parties, and (3) file a proof of such service pursuant to Rules of Court, rule 3.1300, subd. (c).

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In The Matter of Frances Peralta Carrillo

26CV001431

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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Jason Moulton et al v. Bowman Construction and Development, Inc

26CV001527

VERIFIED PETITION FOR RELEASE OF INVALID MECHANICS’ LIEN

TENTATIVE RULING: The matter is CONTINUED to September 24, 2026, at 8:30 a.m. in Dept. B to allow Petitioner to remedy the following items.

Should Petitioner fail to properly cure the below defects, the Court will be forced to deny the Petition without prejudice, as September 24, 2026 is the last court day before the 60th day after the filing of the petition. (See Civ. Code § 8486, subd. (a) [“The court may continue the

hearing only on a showing of good cause, but in any event the court shall rule and make any necessary orders on the petition not later than 60 days after the filing of the petition.”].)

1. Notice of Petition on Respondent

The only Proof of Service on file is for service of Notice of Entry of the 8/4/2026 *Ex Parte* Order, which simply set the Petition for hearing and set a briefing schedule. (See 8/13/26 Notice of Entry of Order.) The 8/4/26 *Ex Parte* Order also directed Petitioners to “promptly serve a copy of this Order, *together with the filed Verified Petition and supporting papers*, upon Respondent if they have not already done so, and shall thereafter file proof of service.” (8/4/26 Order, p. 2, ¶ 4. Emphasis added.)

There is no Proof of Service of the Verified Petition and supporting papers on file. Moreover, the 8/13/26 Proof of Service of the Notice of Entry of Order shows service by electronic means. However, service in these types of actions must be in the same manner as service of summons or by certified or registered mail, postage prepaid, return receipt requested. (See Civ. Code, § 8486, subd. (b).) Electronic means is, therefore, not proper.

2. Contents of Petition

The Petition does not contain information pertaining to all items set out under Civil Code section 8484, subdivisions (a) through (h). Specifically, the Petition does not address: “(e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired,” “(g) Whether an action to enforce the lien is pending,” or “(h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.”

The Court notes that the Petition is based on allegations that the lien is defective for failing to have been timely recorded, rather than on allegations that the lien claimant has not commenced an action to enforce the lien within 90 days after recordation. A petition for release of a mechanics lien under sections 8480 *et seq.*, upon which the instant Petition is brought, only covers the latter. Thus, to the extent Petitioner cannot establish all items set out under Civil Code section 8484, subdivisions (e), (g), and (h), the Court will be compelled to deny the Petition.